

Court No. - 28

Case :- WRIT - C No. - 5132 of 2019

Petitioner :- Mewar Education Society

Respondent :- Electricity Ombudsman Electricity Regulatory Bhawan
Vibhuti Khand And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandan Agarwal

Hon'ble Rohit Ranjan Agarwal,J.

On the request of learned counsel for the respondents, put up
this case on 21.2.2019 as fresh.

Order Date :- 14.2.2019

AKJ

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Respondent :- Electricity Ombudsman Electricity Regulatory Bhawan Vibhuti Khand And 3 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Chandan Agarwal

Hon'ble Rohit Ranjan Agarwal,J.

Heard Sri B.C. Rai, learned Counsel for the petitioner and Sri Chandan Agarwal, learned Counsel for respondent nos.3 and 4.

The petitioner has challenged the order dated 27.12.2018 passed by Electricity Ombudsman, Lucknow as well as order dated 9.2.2018 passed by Redressal Forum, Ghaziabad in Complaint No.94 of 2017 to the extent Redressal Forum rejected the claim of the petitioner.

In nutshell, the case of the petitioner is that it is an educational institution and had obtained an electric connection of 118 KVA from the respondent no.4. On 24.3.2017, the department conducted checking of the electric meter. During the said checking, it was found that 'B' Ph CT (10/5A) is defective. On the same day a check meter on D/P was installed.

On 17.8.2017, the Superintending Engineer made an assessment from 1.4.2012 to 24.3.2017 and an assessment was made for Rs.47,17,375/-.

Being aggrieved by the said assessment order, the petitioner-institution approached the respondent no.2, Consumer Grievance Redressal Forum, Meerut. The respondent no.2 framed six issues, while deciding issue No.2, it held that Clause 5.6 of the U.P. Electricity Supply Code, 2005 was not applicable in the present case, as it relates to defective meter, while the case of the petitioner is that CT of the meter was defective. However, the respondent no.2 while deciding the case of the petitioner institution by order dated 9.2.2018 held that under the provisions of Section 56(2) of the Electricity Act, 2003 read with Section 6.15(b) of the U.P. Electricity Supply Code, 2005, the revised bill was to be calculated for 2 years and not from 1.4.2012 to 24.3.2017.

Aggrieved by the said order, the respondent nos.3 and 4 filed Writ C No.15916 of 2018 before this Court challenging the order passed by the Consumer Grievance Redressal Forum,

Meerut.

The Court while admitting the said petition directed the parties to file counter affidavit, it further, as an interim measure, directed the respondent no.2 in the said petition i.e. the petitioner not to make any claim for refund of the part demand already deposited with the electricity department.

The petitioner availed the alternative remedy and challenged the order dated 9.2.2018 before the respondent no.1, Electricity Ombudsman, Lucknow and during the pendency of the said matter deposited 13,000,00/ with the respondent-Power Corporation.

By order dated 27.12.2018, the respondent no.1 disposed of the said representation of the petitioner on the ground that the matter is pending before this Court.

Sri B.C. Rai, learned Counsel for the petitioner submits that in view of Section 5.6(c), the case of the petitioner is covered under the defective meter and as the CT Of the said meter was defective, hence, the assessment can be made for the last three months only.

He further submits that definition of the meter as defined in Section 2.2(mm) includes Current Transformers (CT) as such the finding recorded by the respondent no.2, i.e. the Consumer Grievance Redressal Forum as far as issue no.2 is wrong.

Matter requires consideration.

Learned Counsel for the respondent nos.3 and 4 submits that the matter in dispute is already engaging the attention of the Division Bench as such the present petition be connected and decide along with the said matter.

As the issue in dispute is already engaging attention in Writ C No.15916 of 2018, it is directed that the present case be connected with the said writ petition.

As an interim measure, it is provided that the respondent no.4 shall not disconnect the electricity of the petitioner- institution and the petitioner shall not claim any refund for the amount so deposited.

Order Date :- 21.2.2019

S. Singh